Congress

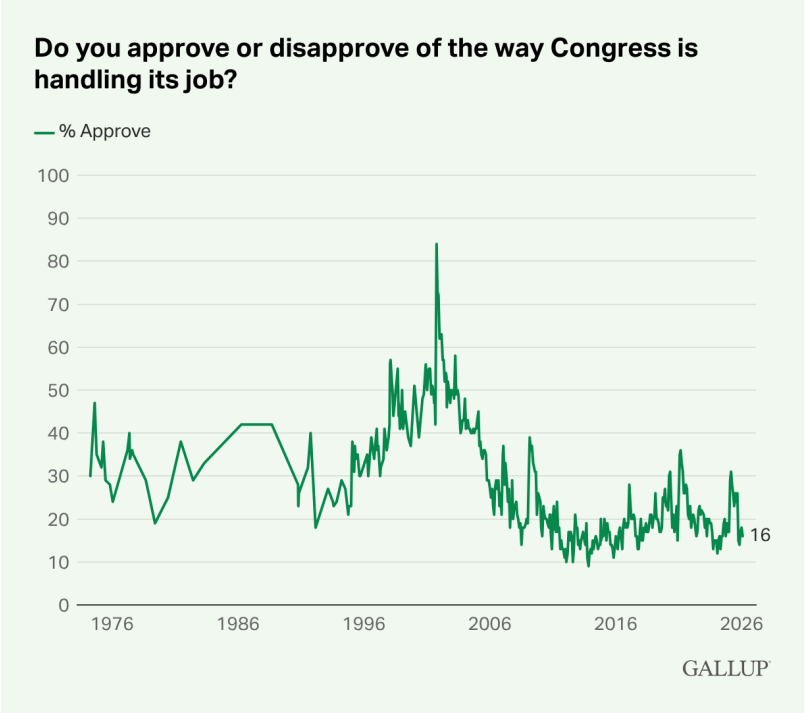
POLS 2311: Government of the United States

Agenda

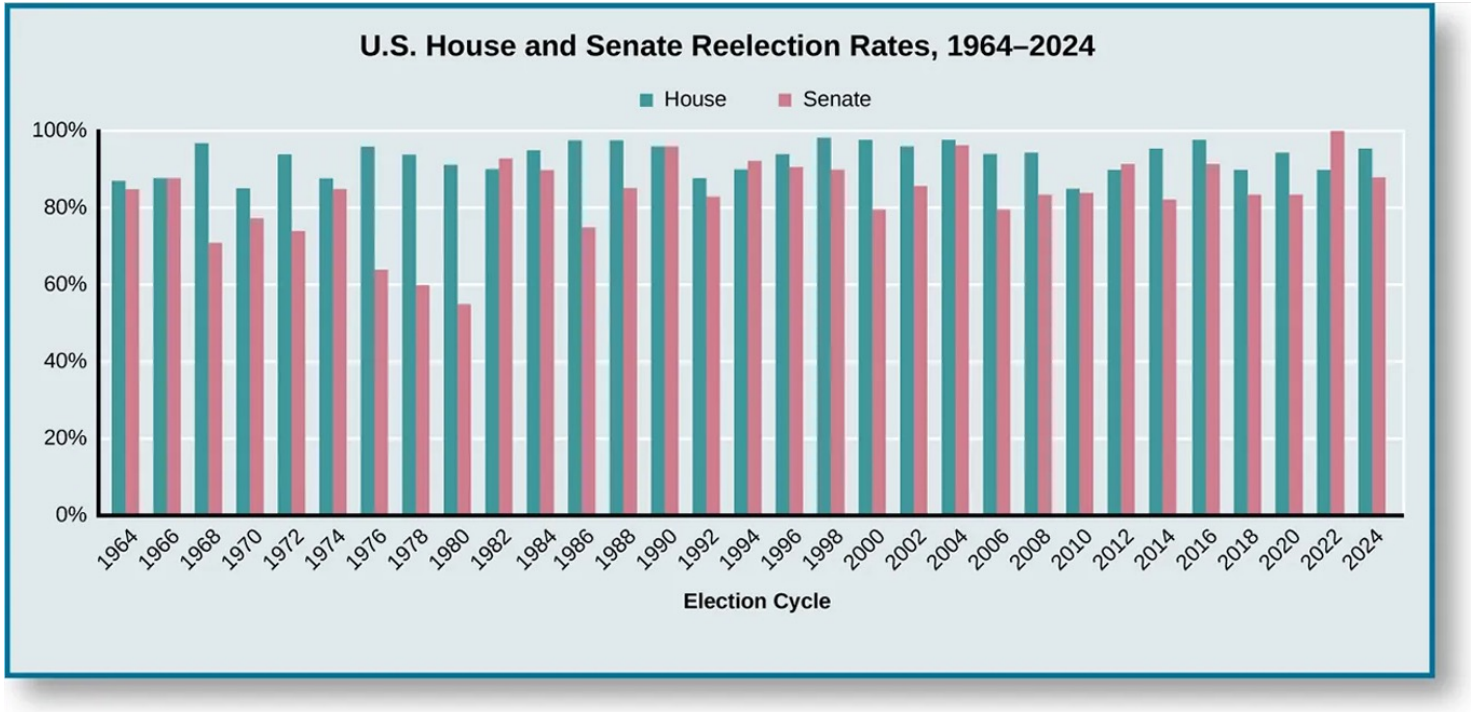
- Congress vs. Parliament, and Who Serves
- The Framers' Design: Federalist 55 and 62
- Congressional Powers
- Congressional Elections and Redistricting
- Representation in the Senate
- Representation
- Congressional Organization
- Electoral Incentives
- Performance and Reform



Congressional Approval



Congressional Reelection Rates



The Congress

- Congress heads the legislative branch of government, comprised of the *House of Representatives* and the *Senate*
- ***Bicameralism***: The practice of having two legislative chambers
- Important functions of Congress:
  - ***Lawmaking***
  - Represent the views of constituents
  - Be of service to constituents in dealings with the national government

Congress versus Parliament

Congress

- Runs for the party nomination, but voters ultimately decide
- Members have individual, independent power
- Robust staff and resources

Parliament

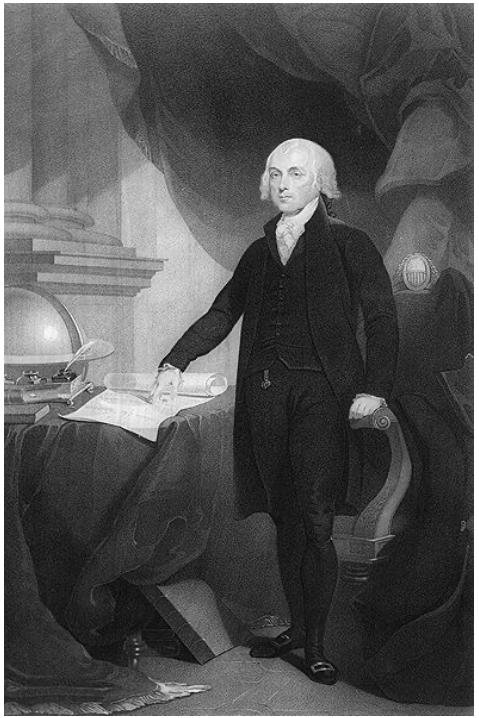
- Selected by the political party to be placed on the ballot
- Power is mostly group-based, rather than individual
- Fewer resources and staff

THE FRAMERS' DESIGN

The Congress

Federalist No. 51

In republican government, the legislative authority necessarily predominates



The Congress

- Designed to be a *deliberative* body
- Represents various interests
  - States (Senate)
  - The People (House)
- Balancing competing interests
  - Small states and big states

How Large Should the House Be?

Federalist No. 55

- Anti-Federalists attacked the proposed House of only **65 members**. They said it would:
  - Be too small to be trusted with the public interest
  - Not know the local circumstances of its many constituents
  - Be drawn from an elite aiming at “a permanent elevation of the few on the depression of the many”
  - Grow more disproportionate as the population grew
- Madison’s reply: “No political problem is less susceptible of a precise solution”

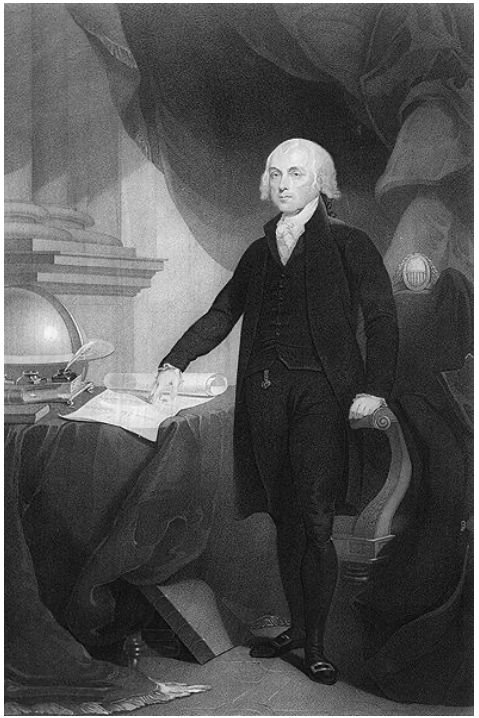
Federalist No. 55

A Floor and a Ceiling

- **Too small**: risks “too easy a combination for improper purposes” and loses “free consultation and discussion”
- **Too large**: produces “the confusion and intemperance of a multitude”
- 60–70 members are safer than 6 or 7, but 600–700 are not proportionally better
- At 6,000–7,000, “the whole reasoning ought to be reversed”
- The problem is **size itself**, not the character of the

Federalist No. 55

In all very numerous assemblies, of whatever character composed, passion never fails to wrest the sceptre from reason. Had every Athenian citizen been a Socrates, every Athenian assembly would still have been a mob



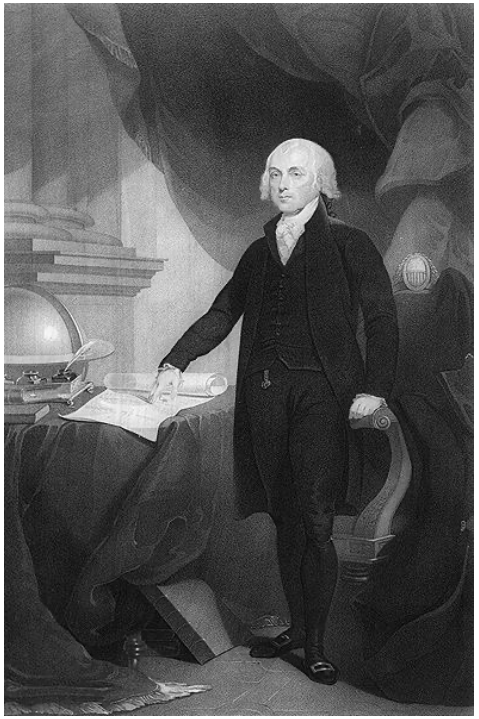
Why a Senate?

Federalist No. 62

- The Articles of Confederation had a **single-chamber** legislature — the case for a second chamber had to be made
- **Higher qualifications** (age 30; nine years a citizen): the "senatorial trust" requires "greater extent of information and stability of character"
- **Selection by state legislatures**: favors "a select appointment" and gives state governments an "agency" in the federal government

Federalist No. 62

…the propensity of all single and numerous assemblies, to yield to the impulse of sudden and violent passions, and to be seduced by factious leaders into intemperate and pernicious resolutions



- The cure: a body that is **less numerous** and holds office “by a tenure of considerable

Size, Tenure, and Deliberation

Federalist 55 and 62 Together

	House	Senate
Members	435	100
Term	2 years	6 years, staggered
Minimum age	25	30
Original selection	The people	State legislatures
Role for Madison	The popular branch	“Coolness,” “system,” “wisdom”

- Deliberation depends on institutional design, not only on the character of members

CONGRESSIONAL POWERS

The Powers of Congress

- ***Enumerated powers***:
  - Power explicitly stated in the Constitution, Article I Section 8

. . .

Declare war

Impose taxes

Coin and regulate currency

Regulate foreign and interstate commerce

Raise and maintain an army and a navy

Maintain a post office

Make laws regulating the naturalization of immigrants

The Powers of Congress

- ***Implied powers***:
  - Powers not specifically detailed in the Constitution but inferred as necessary to achieve the objectives of the national government
  - *Elastic clause*:
    - *To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof*
    - Allows Congress to pass all laws that are “necessary and proper” to carry out enumerated powers

The Legislative Process

Article I Section 7



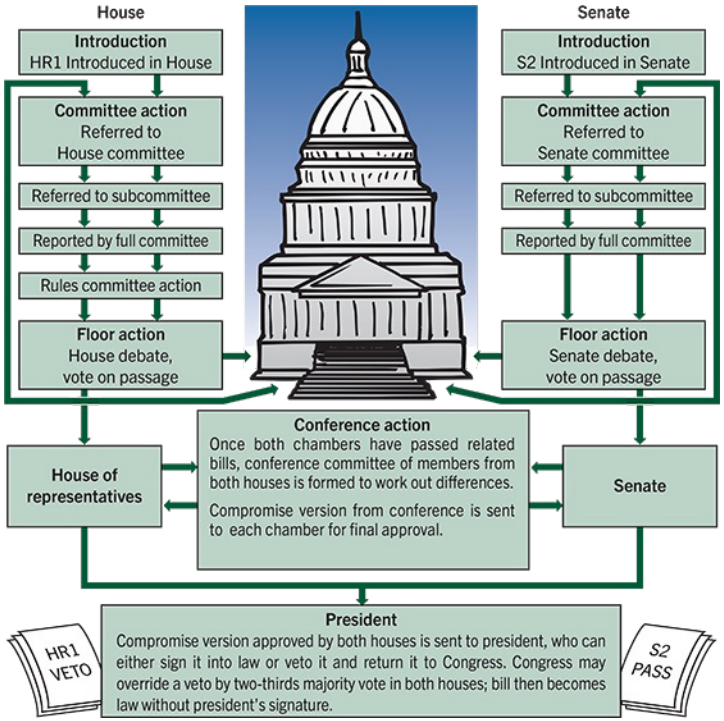
The Legislative Process

Article I Section 7

The Legislative Process

Article I Section 7

- Bill proposals
  - Only legislators can introduce bills
  - Beyond bills: simple, concurrent, and joint resolutions
- Bills referred to proper committee based on jurisdiction and party goals
- Committee action
  - Most bills not acted on in committee
  - Committees can choose to mark up bills for the floor


House
Introduction
HR1 Introduced in House
Committee action
Referred to
House committee
Referred to subcommittee
Reported by full committee
Rules committee action
Floor action
House debate,
vote on passage
Senate
Introduction
S2 Introduced in Senate
Committee action
Referred to
Senate committee
Referred to subcommittee
Reported by full committee
Floor action
Senate debate,
vote on passage
Conference action
Once both chambers have passed related bills, conference committee of members from both houses is formed to work out differences.
Compromise version from conference is sent to each chamber for final approval.
House of representatives
Senate
President
Compromise version approved by both houses is sent to president, who can either sign it into law or veto it and return it to Congress. Congress may override a veto by two-thirds majority vote in both houses; bill then becomes law without president's signature.
HR1
VETO
S2
PASS

The Legislative Process

Article I Section 7

- House *Rules Committee* uses special rules to bring bills to the floor
  - Open rules
  - Closed rules
  - Restricted or modified rules
- Senate uses unanimous consent agreements to bring bills to floor
  - Unlimited debate enables the **filibuster**
  - Ending debate requires **cloture** — 60 votes

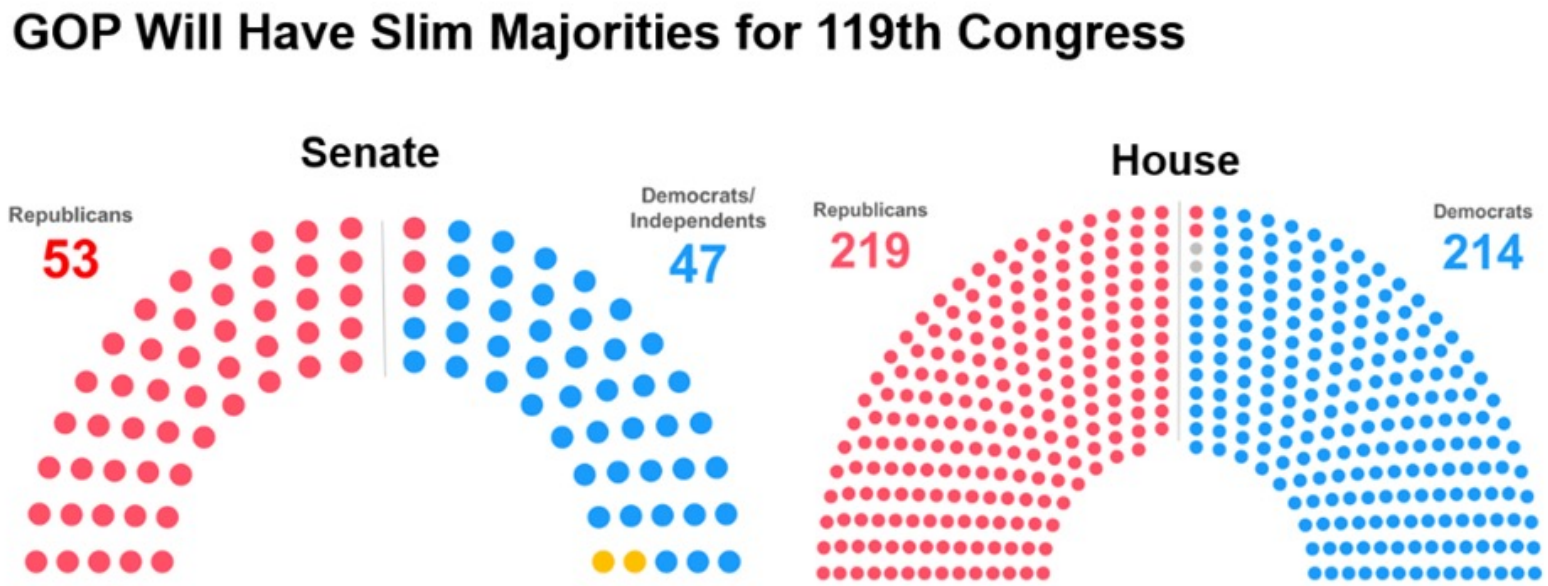
The Legislative Process

Article I Section 7

- Enrolled bills sent to president
  - Sign, veto, or pocket veto
- House and Senate can override veto
  - Two-thirds majority in both chambers
- *Separation of powers system creates bias against action*

ORGANIZATION

Party Control



Political Parties in Government

- Members organize themselves into party coalitions in the House and Senate called a caucus (Democrats) or a conference (Republicans)
- Members choose leadership (Speaker, Majority Leader, Minority Leader, Whips)
- Members empower party leaders to influence the agenda and manage legislation

Congressional Caucuses

- Beyond party caucuses/conferences, members also form issue-based **caucuses**: *an association of congressional members created to advance a political ideology or a regional, ethnic, or economic interest*
- **Ideological**: e.g., Medicare for All Caucus
- **Regional**: e.g., Northeast-Midwest Congressional Coalition
- **Issue-specific**: e.g., Congressional Diabetes Caucus
- **Race/ethnicity-based**: e.g., Congressional Black Caucus

Congressional Leadership: The House

- Speaker of the House
- The majority leader
- Minority leader
- Whips

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AP Images



Three powerful Speakers of the House: Thomas B. Reed, Joseph G. Cannon, and Sam Rayburn.

Congressional Leadership: The Senate

- The Vice-President
- President *pro tempore*: Longest severing member of the majority party
- **Majority leader**
- Minority leader
- Whips

The Committee System

- Each committee focuses on and has *jurisdiction* within a particular area of policy
  - Allows for specialization and expertise in committees
  - Also allows self-selection for members
- Standing committees
- Special/select committees
- Joint committees
- Conference committees

Standing Committees

House	Senate
Standing Committees	
Agriculture	Agriculture, Nutrition, and Forestry
Appropriations	Appropriations
Armed Services	Armed Services
Budget	Banking, Housing, and Urban Affairs
Education and Workforce	Budget
Energy and Commerce	Commerce, Science, and Transportation
Ethics	Energy and Natural Resources
Financial Services	Environment and Public Works
Foreign Affairs	Finance
Homeland Security	Foreign Relations
House Administration	Health, Education, Labor, and Pensions
Judiciary	Homeland Security and Governmental Affairs
Natural Resources	Judiciary
Oversight and Government Reform	Rules and Administration
Rules	Small Business and Entrepreneurship
Science, Space, and Technology	Veterans' Affairs
Small Business	
Transportation and Infrastructure	
Veterans' Affairs	
Ways and Means	

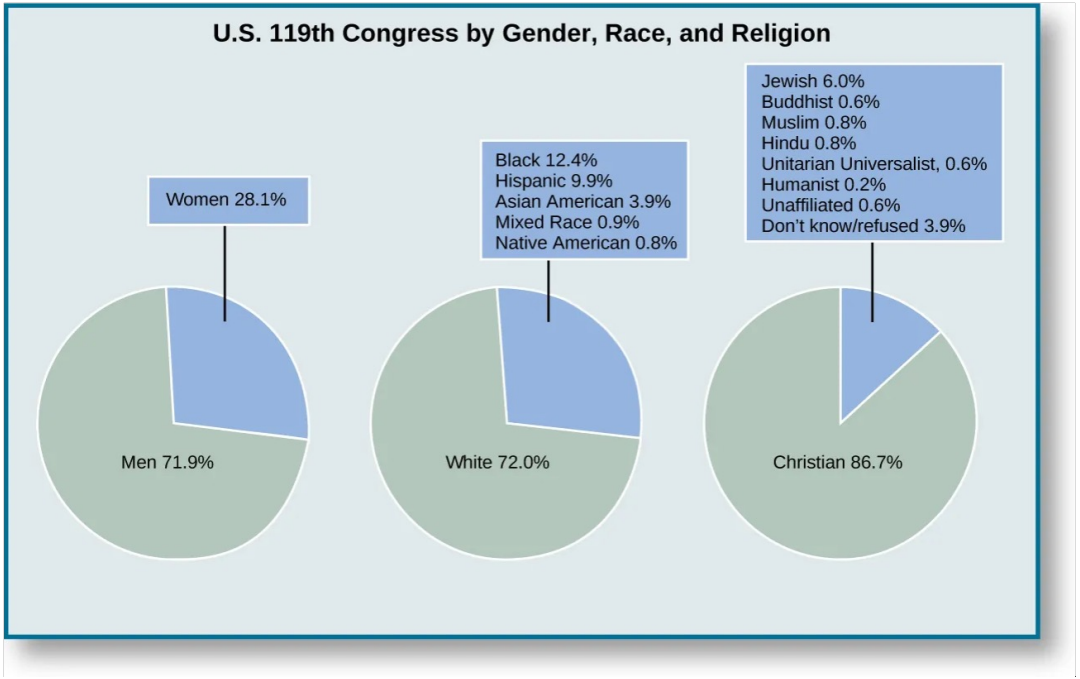
REPRESENTATION

Representation Defined

- *An elected leader's looking out for his or her constituents while carrying out the duties of the office*
- **Styles**
  - ***Representational***: members believe they primarily represent their constituents
  - ***Organizational***: members take cues from their colleagues and party
  - ***Attitudinal***: members also often lead with their own viewpoints

Forms of Representation

Descriptive: rooted in the racial, ethnic, socioeconomic, gender, and sexual identity of the representatives themselves



ELECTIONS

Congressional Elections

The House of Representatives; Article I Section 2

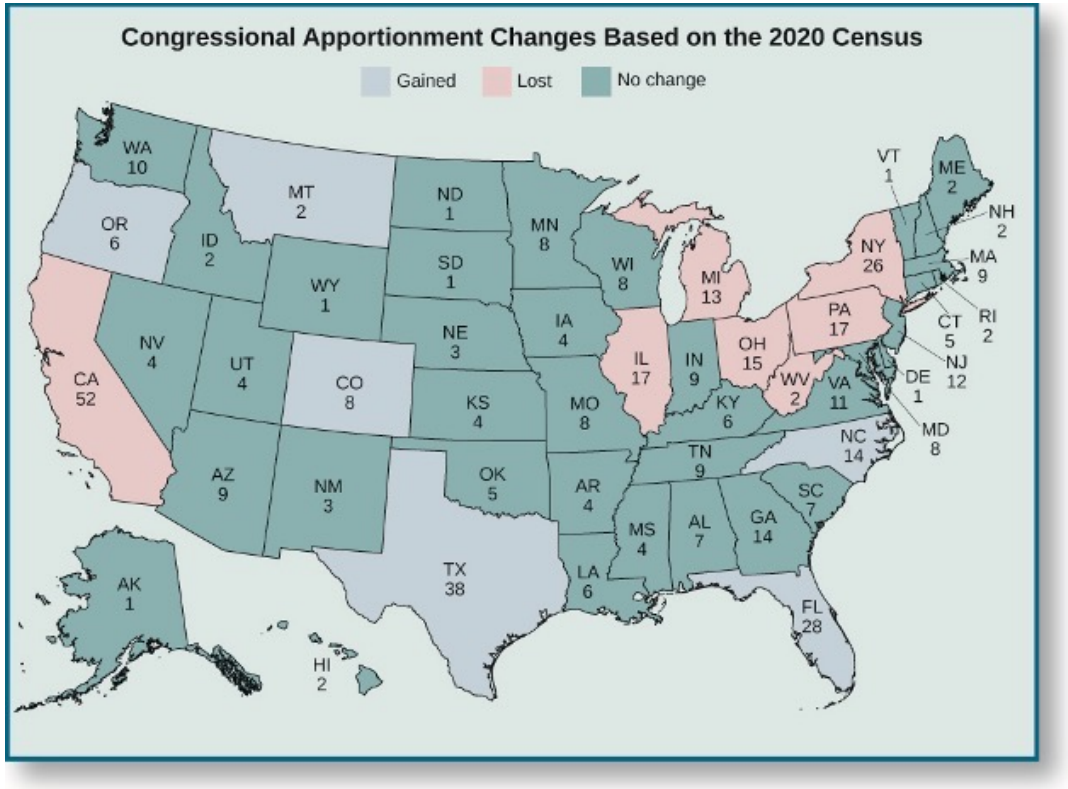
- Elected every two years
- Must be 25 years old
- Based on population
  - *Three-fifths compromise*
  - Originally 1 for every 30,000; now ~800,000
  - Capped at 435 members in 1929
- States decide district boundaries
- **Single member districts; plurality of votes**

Has the House Outgrown Madison?

- Federalist 55's fourth objection: the House would grow **more disproportionate** as the population grew
- 1790: one representative for every **34,436** people
- 1929: House size capped at 435
- 2020: one representative for every **~762,000** people <!–
- *Would a larger House improve representation — or bring back Madison's "confusion and intemperance of a multitude"*? –>

Congressional Elections

Number of representatives per state determined every 10 years following the Census



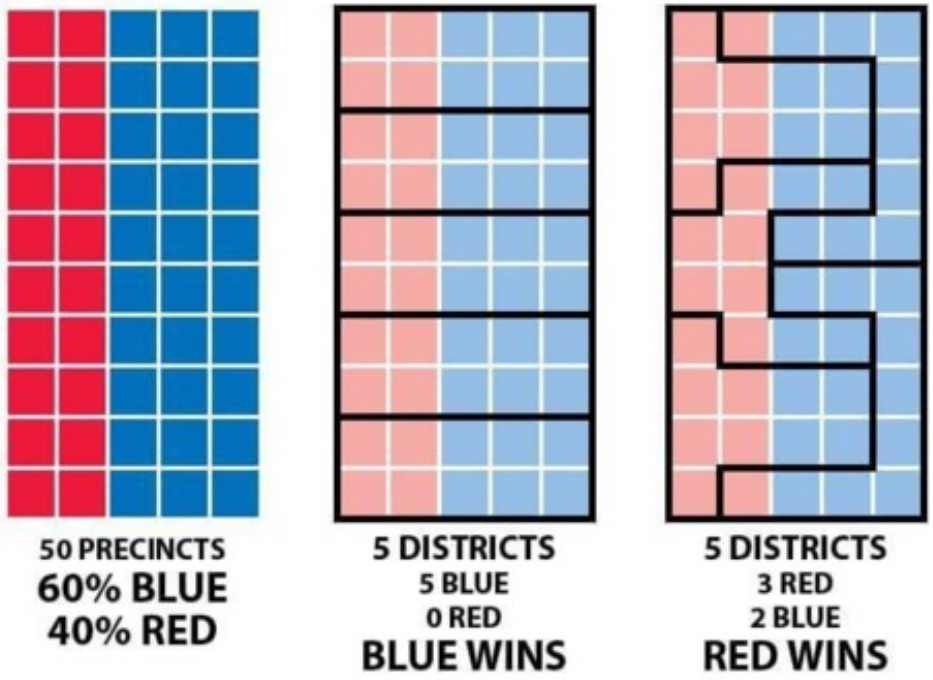
Gerrymandering



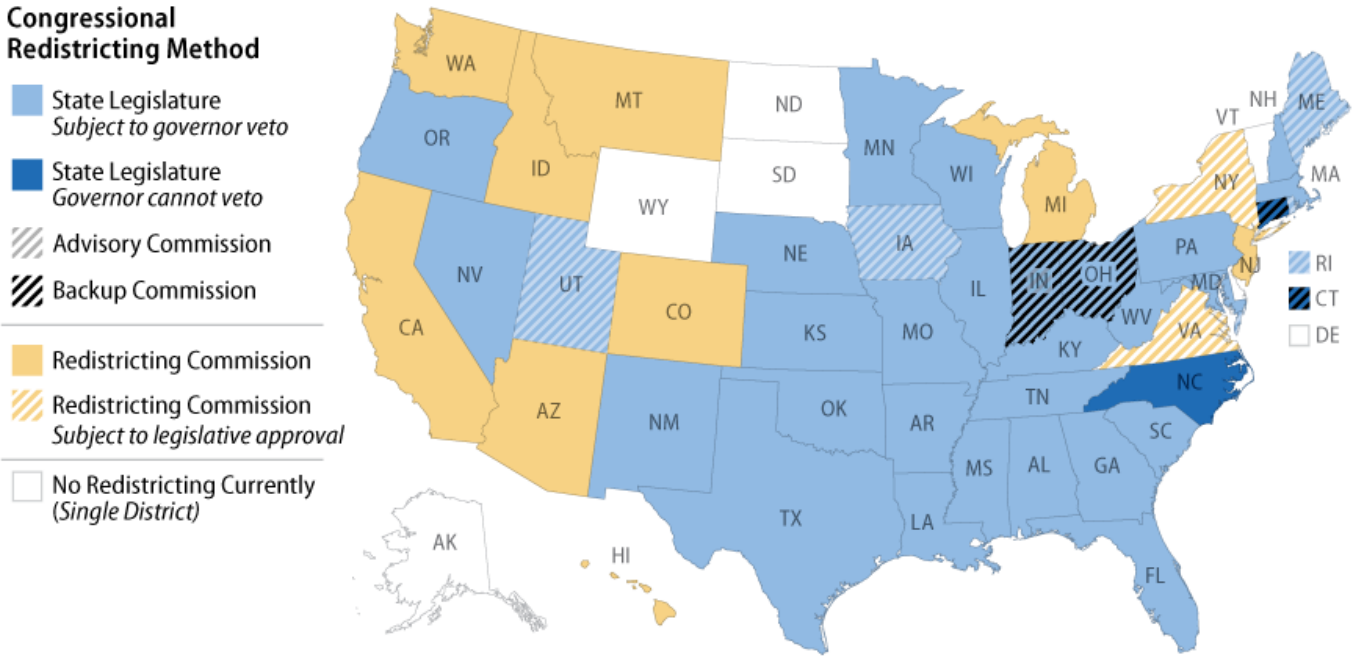
Gerrymandering

- *Manipulative dividing of election district boundaries to give majority advantage to one party*
- ***Packing***: Cramming as many opposition voters as possible into one district
- ***Cracking***: Splitting a concentrated group of opposition voters across multiple districts so they're a minority in each one

Gerrymandering



Gerrymandering



What Counts as a Gerrymander?

- Common definition: drawing lines to give a party an ***unfair*** advantage — but what is “unfair”?

. . .

Who Polices Gerrymandering?

- **Racial gerrymandering**: challenged in federal court under the Equal Protection Clause and the Voting Rights Act
- **Partisan gerrymandering**: *Rucho v. Common Cause* (2019) — a **nonjusticiable** political question for federal courts
- Remedies for partisan maps are left to:
  - State courts and state constitutions
  - Independent redistricting commissions
  - Congress

Mid-Decade Redistricting

Ahead of the 2026 Midterms

- States normally redraw congressional maps only once per decade, after the census
- Since July 2025, a wave of **mid-decade redistricting** has redrawn maps in states on both sides of the aisle
- Before 2025, only two states had voluntarily redistricted mid-decade since 1970
- By September 2026, **ten states** had new congressional maps — some voluntary, some required by law, some ordered by courts

Mid-Decade Redistricting

The Numbers

State	Driver	Net Partisan Effect
Texas	Voluntary (legislature)	+5 R
California	Voluntary (commission)	+5 D
Florida	Voluntary (legislature)	+4 R
Ohio	Required by state law	+2 R
Utah	Litigation	+1 D
AL, LA, MO, NC, TN	Voluntary / litigation	+1 R each

Net: +10 Republican-favorable seats nationwide, as of Sept. 2026

The Legal Trigger: *Louisiana v. Callais*

- April 2026: The Supreme Court rules Louisiana's second majority-Black congressional district an **unconstitutional racial gerrymander**
- Builds on *Rucho v. Common Cause* (2019), which held partisan-gerrymandering claims **nonjusticiable**
- Effect: states can defend race-based challenges by pointing to partisan intent — narrowing the reach of the Voting Rights Act
- Opened the door for Alabama, Tennessee, and South Carolina to revisit maps previously constrained by VRA

REPRESENTATION IN THE SENATE

Congressional Elections

The Senate; Article I Section 3

- Two from each state
- Elected every six years
- Originally appointed by state legislatures
  - Seventeenth Amendment (1913)
- Must be 30 years old

The Great Compromise

- **Virginia Plan**: representation based on population (favored large states)
- **New Jersey Plan**: equal representation for every state (favored small states)
- **Compromise**: House by population, Senate with two per state
- Madison (Fed. 62): the equal vote is “a constitutional recognition of the portion of sovereignty remaining in the individual states, and an instrument for preserving that residuary sovereignty”

A Double Majority

- Every law needs “a majority of the people, and then, of a majority of the states”
- Madison admits this check “may, in some instances, be injurious as well as beneficial”
- But “the facility and excess of law-making seem to be the diseases to which our governments are most liable”
- Bicameralism adds one more **veto point** — another source of the system’s bias against action

The Seventeenth Amendment (1913)

- Framers: state legislatures choose senators — a “select appointment” and a voice for state governments
- After the Civil War, problems mounted:
  - Reporters accused legislatures of taking **bribes** to elect senators friendly to special interests
  - **Deadlocked** legislatures left states without full Senate representation for months or years
- Reformers’ answer: **direct popular election**
- The only major change to the framers’ Senate design

Equal States, Unequal People

Wyoming

588,753 people

2 senators

California

~39.6 million people

2 senators

- A Wyoming resident has roughly **67 times** the Senate weight of a Californian
- **Defenders**: protects small states and federalism; cools majority passion
- **Critics**: “minority rule” — senators representing a minority of Americans can form a Senate majority

ELECTORAL INCENTIVES

Why Incentives Matter

- Members of Congress are rational actors who put **reelection** first
- Then *how* elections are run shapes what members do in office
- The framers balanced two goals:
  - Two-year House terms keep members **accountable**
  - Six-year Senate terms **insulate** members from “sudden and violent passions” (Fed. 62)
- Did they get the balance right for a modern Congress?

The Never-Ending Campaign

- House members face voters every **two years**; one-third of the Senate is always up
- The U.S. sets **no limit** on how long campaigns last
  - United Kingdom: about 25 working days
  - Japan: about 12 days
- Congressional working days have declined since the mid-1990s
- Both chambers sharply cut time in Washington in election-year Octobers and Novembers

The Rising Cost of Campaigns

Average incumbent spending (inflation-adjusted)

	1986	2024
House	$1.06 million	$2.7 million
Senate	$9.03 million	$25.6 million

- By some estimates, members spend more hours on donor calls than on committee and floor work combined
- Heavy reliance on large donors is associated with **fewer** bills introduced, speeches given, and hearings attended

Primaries and Safe Seats

- Fewer than **20%** of voters cast primary ballots
- In 2022, **8%** of voters effectively decided **83%** of House races
- Primary voters skew older, whiter, and more partisan
- Competitive House districts: **164** (37.7%) in 1997 → **42** (9.7%) in 2026
- States with split-party Senate delegations: **27** in 1980 → **4** today
- In a safe seat, the only real threat is the **primary** — which rewards party loyalty over compromise

Insecure Majorities

- 1933–1994: long stretches of one-party control of Congress
- Since the mid-1990s (House) and early 1980s (Senate): control can flip almost every election
- Every election is a fight for the majority, so party leaders:
  - Tightly control the floor agenda
  - Allow fewer amendments
  - Protect vulnerable members and stress **party unity**
- 2025: about **70%** of House votes and **94%** of Senate votes split along party lines

Safe but Insecure

- Reelection rates are very high: House **91–97%**, Senate **95–98%** in recent cycles
- Yet members act as if they are always vulnerable. Richard Fenno: members always find “reasons to feel insecure”
- Low-risk substitutes for hard lawmaking:
  - **Casework** for constituents
  - **Pork-barrel** spending for the district
  - **Symbolic position-taking**: commemorative resolutions, bills with no chance of passing

Are Incentives the Whole Story?

- Electoral incentives are **one factor among several**:
  - A fragmented media environment
  - Congress's limited staff and institutional capacity
  - Growth of unilateral executive power
- Congress still passes many **low-profile, bipartisan** bills each year
- Judging Congress requires a view of what a "well-functioning Congress" *should* do